THE HONORABLE ROBERT J. BRYAN

UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF WASHINGTON
AT TACOMA

AILA CURTIS, ET AL, Plaintiffs, v. PEACEHEALTH, LIZ DUNNE, DOUG KOEKKOEK, TODD SALNAS, PATRICK ALLEN AND GOV. KATE BROWN Defendants	Case No.: 3:23-cv-05741-RJB **PLAINTIFFS' OPPOSITION TO MOTION TO DISMISS BY GOV. INSLEE** **NOTE ON MOTION CALENDAR: DECEMBER 1, 2023** **ORAL ARGUMENT REQUESTED**

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

TABLE OF CONTENTS

I.	Introduction	5
II.	Legal Standard	6
III.	Argument and Authority	7
	A. Proclamation	7
	B. Federal Rights under 21 USC § 360bbb-3 (the EUA Statute)	9
	C. Washington's Emergency Response	12
	D. Rights Conferring Language	14
	E. Investigational Drug, Clinical Investigation, and Human Subjects	15
	F. Federal Wide Assurance	15
	G. Applicability of the EUA Statute	16
	H. Availability of Comirnaty	18
	I. No Controlling Authority Cited by Defendant	19
	J. DOJ Slip Opinion	20
	K. Conflicting Position on Applicability of EUA Statute	21
	L. Consequences	21
	M. Admission of Violation	23
	N. Human Subjects and Federal Funding	23
	O. ICCPR Treaty	26
	P. Unconstitutional Conditions Doctrine	27
	Q. Due Process	27
	R. Equal Protection	31
	S. Spending Clause	32
	T. State Law Claims	33
	U. Qualified Immunity	33
IV.	Oral Argument Requested	37
V.	Conclusion	37

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

TABLE OF AUTHORITIES

Cases

Abigail Alliance v. Eschenbach, 495 F.3d 695 (D.C. Cir. 2007) 35
Anderson v. Creighton, 483 U.S. 635 (1987) 34
Ashcroft v. Iqbal, 556 U.S. 662 (2009) 6
Barry v. Barchi, 443 U. S. 55 (1979) 35
Bell v. Burson, 402 U. S. 535 (1971) 35
Becker v. Community Health Systems, 184 Wn.2d 252, 359 P.3d 746 (2015) 36
Bell Atlantic Corp. v. Twombly, 550 U.S. 544, 570 (2007) 6
Biden v. Missouri, 595 U.S. 87 (2022) 14
Connell v. Higginbotham, 403 U. S. 207 (1971) 35
Doe v. Rumsfeld, 297 F. Supp 2d 119 (DC 2003) 28
Doe v. Rumsfeld, 341 F. Supp 2d 1 (DC 2004) 28
Goldberg v. Kelly, 397 U. S. 254 (1970) 35
Gonzaga Univ. v. Doe, 536 U.S. 273 (2002) 9, 15
Goss v. Lopez, 419 U. S. 565, 419 U. S. 573-574 (1975) 35
Health and Hospital Corp of Marion Cty. V. Talevski __ US __ (2023) 9, 15
Hope v. Pelzer, 536 U.S. 730, 731 (2002) 33, 34
Jacobson v. Commonwealth of Massachusetts, 197 U.S. 11 (1905) 27, 28
Johnson v. Brown, 567 F. Supp. 3d 1230, 1256 (D. Or. 2021) 19
Logan v. Zimmerman Brush Co., 455 U.S. 422 (1982) 36
Mathews v. Eldridge, 424 U. S. 319 (1976) 35
Memphis Light, Gas & Water Div. v. Craft, 436 U. S. 1, 436 U. S. 11-12 (1978) 35
Mullane v. Central Hanover Bank & Trust Co., 339 U.S. 306 (1950) 35
Rickman v. Premera Blue Cross, 184 Wn.2d 300, 358 P.3d 1153 (2015) 36
Roman Catholic Diocese of Brooklyn v. Cuomo, 141 S.Ct. 63 (2020) 13
Rose v. Anderson Hay & Grain Co., 184 Wn.2d 268, 358 P.3d 1159 (2015) 36
Timbs v. Indiana, 139 S.Ct. 682, 203 L.Ed.2d 11 (2019) 30
United States v. *Lanier,* 520 U.S. 259, 270 34
United States v. Rutherford, 442 U.S. 544 (1979) 35

Statutes

10 U.S.C. § 980 5, 15, 32
18 U.S.C. § 242 34
21 U.S.C. § 301 7
21 U.S.C. § 355, *et seq*. 7, 10
21 U.S.C. §360bbb-3 5, 7, 9, 16, 25, 26, 33, 36
21 U.S.C. §360bbb-3(c)(3) 9, 19
21 U.S.C. §360bbb-3(e)(1)(A)(ii)(III) 16, 31, 35
42 U.S.C. § 247d-6d 7, 36

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

42 U.S.C. §247d-6e	36
45 CFR part 46	5, 11, 15, 24, 25, 26
The Belmont Report	5, 11, 24, 25, 26
Article VII of the ICCPR Treaty	5, 26
U.S. Constitution's Eighth Amendment	30
U.S. Constitution's Fourteenth Amendment	5, 6, 8, 30, 31, 36
Supremacy Clause Doctrine	15, 17, 27
The 1974 National Research Act	11, 25
RCW 43.01.020	16

Other Authorities

ACIP Interim Recommendation, December 2020	19, 20
Black's Law Dictionary 2nd Ed.	35
CDC COVID-19 Program Provider Agreement	7, 13, 16, 17, 19, 24, 26, 33, 36
Tuskegee Study - Timeline - CDC - OS. Published 2023. Accessed November 23, 2023. https://www.cdc.gov/tuskegee/timeline.htm	10
The National Commission for the Protection of Human Subjects of Biomedical and Behavioral Research. - Belmont Report. Colorado, DC: U.S. Department of Health and Human Services,1979	11
Federal Register/Vol. 70, No. 21 /Notices 5455 IV Conditions of Authorization	36
Federal Wide Assurance 00000327	15, 25
FDA Guidance, Emergency Use Authorization of Medical Products, July 2007.	22
Slip Opinion, DOJ, (July 6, 2021)	20
Vaccine Information Fact Sheet, December 2022	19, 20, 22

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

I. INTRODUCTION

Jay Inslee, the individual, took an oath to support the U.S. Constitution and to discharge the duties of Governor of Washington faithfully. Upon accepting those requirements, Jay Inslee, as Governor, owed Fourteenth Amendment obligations to Plaintiffs irrespective of the option they chose under the EUA statute. Just as Congress created laws governing how persons can be treated under the 14th Amendment due to their color, race, sex, and creed, it also established laws providing persons the option to accept or refuse EUA products or PREP Act countermeasures. Both options (accept and refuse) must be treated equally and without consequence to satisfy the requirements of the Equal Protection doctrine.

The case at bar is simple. After the COVID Public Health Emergency declaration, the HHS Secretary authorized emergency unlicensed use of drugs, biologics, and devices under the EUA statute and listed them as countermeasures under PREP Act immunity. President Biden purchased those products and established the CDC COVID-19 Vaccination Program for the explicit purpose of distributing the federal property to individuals through States' existing immunization programs. Governor Inslee volunteered Washington to participate in the program under the terms and conditions established for the State and private parties the State authorized to engage in the joint activity. President Biden was bound to laws[1] governing the unlicensed use

[1] 21 U.S.C. §360bbb-3, 45 CFR Part 46, Article VII of the ICCPR Treaty, the Belmont Report, 10 U.S.C. § 980, the federal Constitution, among others.

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

of drugs and delegated that obligation to Governor Inslee, who in turn delegated it to authorized entities.

However, Jay Inslee, the individual, mispresented and acted outside the scope of his discretionary authority and in violation of federal law, the Fourteenth Amendment, and his agreement with the CDC when he required Plaintiffs inject EUA/PREP Act drugs into their bodies as a condition to enjoy a privilege of the State, causing severe financial, emotional, and legal injuries to the lives of Plaintiffs.

Defendant seems to try and justify his actions by saying he was combatting "the COVID-19 pandemic -- the deadliest in American history." The fact that emergencies occur is why the Emergency Use Authorization statute was created. To be ready and prepared for emergencies is the reason the Public Readiness and Emergency Preparedness Act was passed. One cannot excuse oneself from complying with the EUA statute and the PREP Act by claiming an emergency is at hand. Congress already considered that when it wrote the law. Congress wrote and meant that if someone is presented with an EUA/PREP Act drug, they have the right to accept or refuse without a civil or criminal consequence.

II. LEGAL STANDARD

A Complaint does not require detailed factual allegations; it simply must plead "enough facts to state a claim to relief that is plausible on its face." *Bell Atlantic Corp. v. Twombly*, 550 U.S. 544, 570 (2007). When considering a Rule 12 Motion to Dismiss, the Court is required to accept Plaintiffs' factual allegations as true. *Ashcroft v. Iqbal,* 556 U.S. 662 (2009).

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

III. ARGUMENT AND AUTHORITY

A. Defendant's Proclamation

Defendant issued his Proclamation under the false pretense that Plaintiffs could comply using Pfizer's licensed Comirnaty vaccine. That same unfounded argument is made in his Motion to Dismiss. As the Amended Complaint alleges,[2] Defendant's Proclamation exclusively relied on federal property (COVID-19 EUA drugs) that were not FDA-licensed as a vaccine but authorized for use only under emergency use protocols and were FDA-classified as investigational.[3] Public and private authorities are prohibited by Congress from interfering in the lawful administration of drugs, biologics, and devices not licensed for any legal indication by the FDA.[4] Moreover, Congress expressly prohibited States from requiring Plaintiffs to use EUA or PREP Act products[5] because that requirement conflicts with those federal laws.

When Governor Inslee agreed to distribute the federal government's EUA drugs through the State's immunization program, the CDC COVID-19 Vaccination Program Provider Agreement (Provider Agreement) provided him with fair warning that Organizations were

---

[2] Doc 8, ¶ 27-29.
[3] Doc 8, ¶ 29-34.
[4] 21 U.S.C. § 355(a)
[5] "Preemption of State law. During the effective period…no State or political subdivision of a State may establish, enforce, or continue in effect with respect to a covered countermeasure any provision of law or legal requirement that— (A) is different from, or is in conflict with, any requirement applicable under this section; and (B) relates to the…administration…of the covered countermeasure, or to any matter included in a requirement applicable to the covered countermeasure under this section or any other provision of this chapter, or under the Federal Food, Drug, and Cosmetic Act [21 U.S.C. 301 *et seq*.]." - 42 USC 247d-6d(b)(8). The option to accept or refuse is under 21 U.S.C. 301 *et seq*., and its requirement to inform persons considering the use of an EUA product of their lawful authority to refuse is a "matter included in a requirement" coming under the express preemption language of the PREP Act.

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

obligated to comply with 21 U.S.C. §360bbb-3 (the EUA statute), the Scope of Authorization for each EUA, and all applicable laws requiring only voluntary participation by Plaintiffs. Requiring what Congress prohibits is not a legitimate interest of the State.

Defendant argues that he had the authority to issue a mandate for Plaintiffs to inject a "vaccine" into their bodies as a condition to enjoy the privilege of the State, and thus Plaintiffs' claims should be dismissed. However, no FDA-licensed COVID-19 vaccine was introduced into commerce for general commercial marketing during the pendency of Defendant's Proclamation. Defendant cites case law, statutes, and other legal references as his authority to issue a "vaccine" mandate. Plaintiffs contend that such references are inapplicable because Plaintiffs do not challenge that authority. Plaintiffs' claims specifically hinge upon the unlawful and unconstitutional conditions they were subjected to and experienced by the way Defendant applied his Proclamation to the use of EUA/PREP Act drugs. Such products can never come under compulsory requirements, and that is why Congress expressly preempted Defendant from establishing a legal requirement that conflicts with the EUA statute and PREP Act.

At all times pertinent, the only COVID-19 drugs available to Plaintiffs for compliance with Defendant's Proclamation were EUA/PREP Act drugs wholly owned by the federal government and only distributed through a federally funded program requiring Defendant to ensure Plaintiffs were treated in accordance with the Fourteenth Amendment. Thus, Plaintiffs were not legally capable of complying with Defendant's Proclamation because

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

no FDA-licensed vaccine existed in commerce.[6] Governor Inslee, however, makes a grossly incorrect statement when he advises this Court that Comirnaty was available for use by the Plaintiffs.

Defendant's Proclamation, as applied, lacked the force of law and thus was *ultra vires*. Therefore, Defendant's use of statutes, case law, or other legal references pertaining to his authority to issue a true vaccine mandate as his rationale for a dismissal of Plaintiffs' claims is not applicable to the case at bar and, therefore, Plaintiffs will not burden the court by replying to each reference because such citations are irrelevant. It is notable, however, that Defendant cited to no cases authorizing him to mandate the use ***of EUA/PREP Act drugs***. That is because no such cases exist.

B. Federal Rights under 21 U.S.C. § 360bbb-3 (the EUA statute)

Defendant spends an enormous amount of time requesting the court to dismiss Plaintiffs' claims based on his assertion that 21 U.S.C. § 360bbb-3 does not contain a right enforceable under § 1983. Although *Gonzaga Univ. v. Doe*, 536 U.S. 273, 283 (2002) and *Health and Hospital Corp. of Marion Cnty v. Talevski*, 599 U.S. 166, 183 (2023) speak to § 1983 enforceable rights relating to spending legislation, those cases more than demonstrate that the EUA statute contains rights conferring language.

The rights conferring language is explicit in subsection (e)(1)(A)(ii), which requires:

---

[6] 21 U.S.C. §360bbb-3(c)(3) denies authority to issue an EUA if a licensed product exists in the marketplace meeting the intended emergency use of the product.

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

> Appropriate conditions designed to ensure that individuals to whom the product is administered are informed—
>
> (I) that the Secretary has authorized the emergency use of the product;
>
> (II) of the significant known and potential benefits and risks of such use, and of the extent to which such benefits and risks are unknown; and
>
> (III) of the option to accept or refuse administration of the product, of the consequences, if any, of refusing administration of the product, and of the alternatives to the product that are available and of their benefits and risks.

"Individuals" refers to potential recipients, like Plaintiffs. The rights conferred include being "informed…of the option to accept or refuse administration of the product." These rights are specific to Plaintiffs and could not be more clear. Defendant's argument that there is no rights-conferring language is unsupported by the terms of the statute and should be rejected.

The general public cannot use a drug or biologic before it receives its FDA marketing license.[7] However, in a declared emergency, the EUA statute can be used to lift that restriction if the HHS Secretary so declares and if the individual chooses to use the drug voluntarily.

Congress specifically conferred the right to refuse upon a person considering whether to use a product authorized under the EUA statute because, in 1972, the nation was made aware of human rights atrocities committed against African-American males at the hands of their own government.[8] In 1973, Senator Edward Kennedy held live hearings in support of passing the

---

[7] 21 U.S.C. § 355(a)

[8] Tuskegee Study - Timeline - CDC - OS. Published 2023. Accessed November 23, 2023. https://www.cdc.gov/tuskegee/timeline.htm ; For the same reasons as requested by Defendant (Doc 18, p.1-2),

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

National Research Act, exposing medical research abuses by the federal government and pharmaceutical companies, primarily impacting persons of color, women, Indians, and the poor. In 1974, Congress enacted the National Research Act[9] establishing Institutional Review Boards, the Belmont Report,[10] and the requirement of the HHS Secretary to promulgate regulations governing the protection of humans involved in federally funded investigational medical products known as 45 CFR Part 46 (Common Rule).[11] The Act led to Congress developing adequate standards of informed consent outlined in detail at 45 CFR § 46.116 and the Belmont Report.[12] The adequate standards of informed consent require the legally effective informed consent of the individual to be prospectively obtained when involving them in federally funded investigational medical products.[13] Consent that is legally effective requires the sponsor or anyone acting on behalf of the sponsor to ensure that the individual considering using an investigational product is not under a "sanction," "coercion," "undue influence," or "unjustifiable pressure".[14] Should they come under those outside pressures, then the individual's legally effective informed consent is not obtained, even if the individual consents to the use of the product. Therefore, the option to

---

Plaintiffs ask the court to take judicial notice of government records and data cited herein, including from the FDA, CDC, HHS, DOJ, DoD, ACIP, and the National Cancer Institute.

[9] Title II of the National Research Act, Public Law 93-348 - https://www.govinfo.gov/content/pkg/STATUTE-88/pdf/STATUTE-88-Pg342.pdf

[10] The National Commission for the Protection of Human Subjects of Biomedical and Behavioral Research. - Belmont Report. Colorado, DC: U.S. Department of Health and Human Services,1979

[11] Doc 8, Footnote 20

[12] 45 CFR § 46.101(c) & 45 CFR § 46.101(i) require any federally funded research activity to come under the purview of the Belmont Report.

[13] 45 CFR 46.116(a)(1); See also, Doc 8, Footnote 31, ¶ 72, 73, 74

[14] The Belmont Report's definition of "adequate standards" of informed consent. See Part C: Applications 1. Informed Consent. https://www.hhs.gov/ohrp/sites/default/files/the-belmont-report-508c_FINAL.pdf

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

"refuse" has significant Congressional history for the purpose of preventing the U.S. government from committing additional human rights atrocities.

Defendant primarily builds his defense to Plaintiffs' contentions on:

> (1) a claim that he had lawful authority to issue a mandate,
>
> (2) a claim that Comirnaty existed in commerce, and
>
> (3) a claim that the option to accept or refuse is not a right conferred upon Plaintiffs by Congress.

In actuality, Defendant:

> (1) lacked authority to require involuntary use of the EUA/PREP Act drugs he relied upon for compliance with his Proclamation, and Plaintiffs do not contest whether or not he can issue a vaccine mandate,
>
> (2) is demonstrably wrong on the availability of Comirnaty, and
>
> (3) the option to accept or refuse is an explicit right conferred upon individuals considering the emergency use of unlicensed drugs, biologics, and devices under EUA and PREP Act authority.

For these reasons, Defendant's motion to dismiss should be denied.

C. Washington's Emergency Response

Defendant's recitation of his response to the COVID-19 pandemic is self-serving and irrelevant, and he does not state by what lawful authority he required that which Congress prohibited nor how he had the authority to treat Plaintiffs differently when choosing their statutory authority to refuse from individuals choosing the option to accept—a severe violation of the Equal Protection doctrine. Moreover, Defendant acted with outrageous moral turpitude when requiring state-licensed medical facilities to deny employment to Plaintiffs when they specifically refused

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

to inject the federal government's EUA investigational drug into their bodies, which requirement was in direct violation of the Provider Agreement. Defendant's response to the COVID-19 pandemic by placing Plaintiffs under threat of penalty if they refuse to use unlicensed drugs funded by the federal government was outside the scope of his discretionary or other authority because "even in a pandemic, the Constitution cannot be put away and forgotten." *Roman Catholic Diocese of Brooklyn v. Cuomo*, 141 S.Ct. 63, 208 L.Ed.2d 206 (2020).

In his Motion to Dismiss, Defendant argues, "To facilitate the administration of the vaccines, the CDC entered into COVID-19 Vaccination Provider Agreements ("Provider Agreements") with healthcare providers in the various states, including Washington."[15] While technically accurate, this statement conceals the material fact that the CDC worked through the State, not directly with private parties without the State's authority. A necessary requirement of the tri-party collaboration was that Gov. Inslee authorized Organizations to utilize the State's immunization cooperative agreement with CDC to participate in the CDC Vaccination Program.

Defendant's assertion that he issued a Proclamation for healthcare workers to obtain COVID-19 "vaccines" is false, as no such classified drug existed in commerce for general commercial marketing (Doc 18, p. 4).

Defendant claims, "The Proclamation required covered employers to evaluate requests for medical and religious exemptions and provide reasonable accommodations, consistent with state

---

[15] Doc 18, p. 12.

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

and federal antidiscrimination statutes."[16] Plaintiffs' authority to accept or refuse an EUA/PREP Act product is absolute, and Defendant had no authority to require Plaintiffs to seek a religious or medical exemption as a condition to enjoy that privilege, which demonstrates the requirement, as applied, was *ultra vires*.

Defendant's citation of *Biden v. Missouri*, 595 U.S. 87, 89 (2022) (Doc 18, p. 5) is not applicable because that case only speaks to the authority of the President to issue a mandate relying on FDA-licensed drugs. There is no case holding that the President can issue a mandate relying on EUA/PREP Act drugs.

Defendant cites numerous cases discussing challenges to vaccine mandates (Doc 18, p. 6), but none are applicable to the case at bar because, as with *Biden v. Missouri*, those cases discuss challenges to a governor's authority to issue a true vaccine mandate, not an EUA/PREP Act drug mandate. In fact, Defendant can cite to no case holding that he has the authority to issue an EUA/PREP Act drug mandate. That is because no such case or authority exists.

D. Rights Conferring Language

Defendant argues that "despite alleging five distinct counts under § 1983, Plaintiffs fail to identify any specific right that the Proclamation purportedly violated." (Doc 18, p. 8) This statement is puzzling in light of the detail to which Plaintiffs went to describe the rights conferring language in both the EUA and the PREP Act. Moreover, Plaintiffs plead in detail how Gov.

[16] Doc 18, p. 5.

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

Inslee's Proclamation is unconstitutional because it violates both the Equal Protection Clause, the Supremacy Clause, and the Due Process Clause. Plaintiffs plead all of those claims in detail.[17]

E. Investigational Drug, Clinical Investigation, and Human Subjects

Defendant mischaracterizes Plaintiffs' complaint when stating "The COVID-19 vaccine is not an 'investigational drug'" (Doc 18, p. 10). This is a correct statement but irrelevant since Comirnaty, the only COVID-19 vaccine, was not introduced into commerce at all times pertinent to this action. Defendant's assertion that Comirnaty received its licensing approval before Plaintiffs were required to "obtain a COVID vaccine under the Proclamation" ignores the fact that Defendant did not procure the licensed drug, ensuring his Proclamation was lawful. Plaintiffs never asserted that Comirnaty was an investigational drug.

F. Federal Wide Assurance

Additionally, Defendant's assertions about the Federal Wide Assurance (FWA) agreement in Footnote 12 of its motion (Doc 18, Footnote 12, p. 11) are erroneous. Plaintiffs explain the FWA in footnote 23 of the Complaint (Doc 8, p. 30). The FWA binds the State of Washington through its signed FWA00000327 number anytime it involves humans with federally funded medical research activities. Defendant cites *Talevski* and *Gonzaga Univ.*, but both of those cases support Plaintiffs' argument that spending legislation provides § 1983 enforcement when it confers rights onto an individual such as 45 CFR §46.116,122 & 10 U.S.C. § 980 and the

---

[17] Doc 8, 21, 22, 23, 27, 28, 29, 34, 39, 50, 52, 55, 57, 58, 59, 62, 71, 74, 80, 84, 90, 91, 92, 94, 195, 196, 197, 198, 202, 207, 212, 233, 237, 249, Footnote 12.

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

Provider Agreement. Moreover, the drugs funded were under 21 U.S.C. §360bbb-3(e)(1)(A)(ii)(III), which confers a specific right to accept or refuse in unambiguous language to Plaintiffs (see *supra*).

G. Applicability of the EUA Statute

Defendant's outrageous claim that "the [21 U.S.C. §360bbb-3] statute does not apply to the Proclamation" (Doc 18, p. 12, line 1) is patently false. Defendant's Proclamation specifically states that a person is considered "fully vaccinated" if they receive drugs "authorized for emergency use."[18] Only EUA/PREP Act drugs were available to Plaintiffs for compliance with Defendant's Ordinance. Moreover, the Proclamation is a matter of public record, and Defendant's mischaracterization of his own Proclamation demonstrates his continual willful disregard for his oath of office and respect for the rule of law.

Defendant's claims that "the statute imposes no obligation on Governor Inslee" and that the HHS Secretary's conditions "only relate to…medical providers who administer the vaccine" (Doc 18, p. 12) are incorrect. The obligation placed on Gov. Inslee is the same obligation placed on everyone: to honor the Plaintiffs' two options. Gov. Inslee also obligated himself to protect and defend the U.S. Constitution when he took office. (RCW 43.01.020) Instead, Gov. Inslee deprived Plaintiffs' Constitutional and federal rights when he interfered with the provisions of the EUA statute's two options and the PREP Act's requirement of only voluntary participation,

[18] Doc 8, ¶ 26.

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

thereby triggering § 1983 and the Supremacy Clause. Moreover, Defendant's agreement with the federal government to distribute its property under the statute established numerous duties set forth in the Provider Agreement.[19]

Gov. Inslee even admits on p. 12 of his memorandum that the EUA statute "requires the *HHS Secretary* to establish the conditions for the administration of emergency use medications" [emphasis in original], yet Gov. Inslee nevertheless issued a Proclamation that usurped the HHS Secretary's power and willfully established conditions for the administration of emergency use medications. This is a direct violation of the EUA statute and results in a deprivation of Plaintiffs' Constitutional and federal statutory rights. Thus, Defendant incriminates his own actions by affirming that the statute "requires the *HHS Secretary* to establish conditions for the administration of emergency use medications." (Doc 18, p. 12) Therefore, by Defendant's own acknowledgment, **he knew** he lacked authority to establish conditions not authorized by the HHS Secretary.

When Washington agreed to participate in the administration of EUA products, its public health agencies and law enforcement officials (both of which are part of the State's Executive Branch) became "stakeholders" as outlined in the FDA's Scope of Authorization letters to the EUA drug manufacturers. Gov. Inslee is the top ranking Executive Branch official in Washington. As a stakeholder, the governor is duty-bound to ensure the conditions established by the HHS

---

[19] Doc 8-1, Provider Agreement.

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

Secretary are executed in accordance with the Secretary's mandatory conditions and are enforced. Defendant willfully ignored his lawful duty and unlawfully amended the Scope of Authorization for each EUA by requiring healthcare facilities to punish persons refusing to participate in the statute's activities (i.e., injecting the product into their bodies under involuntary conditions). As a matter of law, when Defendant agreed to volunteer Washington's participation in the CDC COVID-19 Vaccination Program, he was duty-bound to fulfill the requirements of that relationship and became a stakeholder under each EUA owing duties to Plaintiffs by ensuring the HHS Secretary's informed consent conditions were established and enforced. Defendant did neither.

H. Availability of Comirnaty

Defendant continues to mislead the court by claiming that "Plaintiffs could have complied with the Proclamation by obtaining the fully authorized Pfizer vaccine, which is not an 'emergency use' product subject to the statute. 21 U.S.C. § 360bbb-3(e)(1)(A)." (Doc 18, p. 21). The statement that Plaintiffs could access licensed drugs is patently false, and Defendant has cited to no evidence to prove otherwise. Not only is this court required to accept as true Plaintiffs' factual allegations regarding the non-availability of Comirnaty, but the FDA and Pfizer informed the public that although Comirnaty was licensed for commercial use, the drug was never available in the U.S. Moreover, the FDA has issued numerous EUAs for "Pfizer-BioNTech COVID-19 Vaccine" since August 23, 2021. The FDA is prohibited from issuing an EUA if a licensed

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

product exists to address the emergency condition,[20] so by claiming that Plaintiffs could have used Comirnaty, Defendant is essentially stating that the HHS Secretary has violated federal law since August of 2021 by issuing additional EUAs for "Pfizer-BioNTech COVID-19 Vaccine."

I. No Controlling Authority Cited by Defendant

Defendant cites a non-binding, District Court Oregon case that cites to equally non-binding District Court cases to arrive at an erroneous conclusion: "those conditions of informed consent only relate to . . the medical providers who administer the vaccine, not those who issue vaccine mandates." *Johnson v. Brown*, 567 F. Supp. 3d 1230, 1256 (D. Or. 2021)." (Doc 18, p.12) The Provider Agreement specifically states that the program "is a part of collaboration under the relevant state…immunization's cooperative agreement with CDC." Neither the *Johnson* court nor any cases cited therein were presented with the terms of the Provider Agreement (Doc 8-1) or the FDA's Scope of Authorization letters (Doc 8-4) and, therefore, did not consider a State's collaboration with the federal government and with the Organizations that would be administering the EUA/PREP Act drugs. The Provider Agreement specifically states that "Organization must administer COVID-19 Vaccine in accordance with all requirements and recommendations of CDC and CDC's Advisory Committee on Immunization Practices (ACIP)." (Doc 8-1) ACIP requires providers to give an EUA Fact Sheet to potential recipients and caregivers.[21] The Fact Sheet specifically states:

---

[20] 21 U.S.C. §360bbb-3(c)(3)

[21] See Exhibit A, ACIP Interim Recommendation, p. 2, December 2020. (Highlight on p.1 in original)

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

> Under the EUA, it is your choice to receive or not receive any of these vaccines. Should you decide not to receive any of these vaccines, it will not change your standard medical care.[22]

Defendant cites no controlling authority allowing him to override the CDC, ACIP, or the EUA Fact Sheet. Instead, Stakeholders[23] must ensure that persons are informed of the right to accept or refuse and that such right is enforced and executed in accordance with federal law and the FDA's Scope of Authorization demonstrating a duty upon other persons not considered by the Johnson court. Defendant's reliance on that case is not applicable to the case at bar, and the actions of Gov. Inslee should be held to violate Plaintiffs' Constitutional and federal statutory rights.

J. DOJ Slip Opinion

Defendant's entire discussion on p. 12 of his memorandum related to the Department of Justice Slip Opinion should be disregarded because it is just that – an opinion by an Acting Assistant U.S. Attorney that is not binding on this Court and, in fact, is incorrect as it directly conflicts with a potential EUA drug recipient's "option to accept or refuse" and the "voluntary nature of the program."[24] Moreover, the Slip Opinion proves the fallacy of the author's opinion: Congress only provided the HHS Secretary authority to establish expanded access protocols for the unlicensed use of products under the statute's authority, and yet, not even the Secretary has

---

[22] See Exhibit B, Vaccine Information Fact Sheet, December 2022, p.6.
[23] Persons authorized to administer the medical countermeasures which include state governments, local law enforcement, and healthcare providers. Stakeholders' duties are outlined in the Scope of Authorization of an EUA.
[24] Slip Opinion, DOJ, "Whether Section 564 of the Food, Drug and Cosmetic Act Prohibits Entities from Requiring the Use of a Vaccine Subject to an Emergency Use Authorization." (July 6, 2021)

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

authority to mandate participation.[25] Therefore, if the Secretary is restricted by Congress from imposing mandatory conditions, then by what authority does Defendant cite affording him the lawful authority to establish mandatory conditions? The DOJ slip opinion is not a source of law; it directly contradicts the United States Congress, and it should be given no weight.

K. Conflicting Position on Applicability of EUA Statute

Defendant argues: Plaintiffs have not alleged they were not provided with information required by the statute," and "Plaintiffs cannot contend they were not advised of their right to refuse the vaccine…" (Doc 18, p. 12) In addition to Defendant presenting conflicting arguments by previously claiming the EUA statute does not apply to his Proclamation and then arguing that he complied with the statute by informing Plaintiffs of the consequences for non-compliance with his Proclamation, Plaintiffs specifically alleged that Governor Inslee did not provide them with information about their right to refuse EUA products in his Proclamation and actually concealed that fact from Plaintiffs. (Doc 8, ¶ 85-86). For purposes of a Motion to Dismiss, Plaintiffs' factual allegations, not Defendant's, must be accepted as true.

L. Consequences

Defendants argue that "consequences" for refusing administration of the product include civil penalties. First, Defendant provides no support for that statement whatsoever. Second, Defendant's argument leads to absurd results and should thus be ignored. Specifically, it is absurd

---

[25] Doc 8, ¶ 48.

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

to advise someone they have the option to accept or refuse, only to impose a penalty upon them for doing so. Third, a brief review of FDA guidance would have revealed to Defendant that "consequences" means "health consequences."[26] The FDA explains, in pertinent part:

> The FDA Commissioner will consult with the Director of NIH and the Director of CDC…and will evaluate all the evidence in light of the specific circumstances of the emergency, including potential risks of not receiving treatment with the candidate product, in determining whether to issue an EUA.[10] [Text of Footnote 10: Such evidence includes the possible consequences of not taking or using the candidate product (e.g., possible health effects and the need for quarantine.)][27]

Additionally, the FDA Guidance provides:

> Recipients must have an opportunity to accept or refuse the EUA product and must be informed of any consequences of refusing administration of the product.[28]

Regarding "consequences,"

> FDA also recommends that EUA applicants include the following additional information in the Fact Sheet for Health Care Providers or Authorized Dispensers, if it is available:
>
> * * *
>
> **Consequences** of not taking/using [PRODUCT], including possible health effects and quarantine, and of stopping the use of [PRODUCT] against the recommendation of the health care provider."[Emphasis in original][29]

Finally, the COVID-19 Fact Sheet provides:

---

[26] See Exhibit C, July 2007, FDA Guidance, Emergency Use Authorization of Medical Products, p.5.
[27] *Id*., p. 5, Risk-Benefit Analysis section. Footnote 10 is on p. 20.
[28] *Id*., p. 12, Information for Recipients section.
[29] *Id*., p. 17-18, Section 7.

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

> What if I decide not to get [a COVID EUA product]?
>
> Under the EUA, it is your choice to receive or not receive any of these vaccines. Should you decide not to receive any of these vaccines, it will not change your standard medical care.[30]

Defendant's assertion that he, having no authority to interfere in the statute or rights conferred upon Plaintiffs by Congress, can apply civil or criminal consequences to Plaintiffs because he personally disagrees with Plaintiffs' chosen option is beyond the scope of outrageous. Additionally, not even the HHS Secretary can establish mandatory participation.[31] Therefore, Defendant has no statutory or jurisprudential support for the alleged right to assign a consequence for refusing the use of an EUA drug.

M. Admission of Violation

Defendant admits that he required PeaceHealth, a medical facility under the State's licensing power, to deny Plaintiffs the right to continue or start employment should they not be injected with an EUA drug. Defendant then cites PeaceHealth's policy requiring the use of the Proclamation's drugs to ensure continued employment, demonstrating that Defendant's actions directly led to Plaintiffs' legal, financial, and emotional injuries. (Doc 18, p. 21-22).

N. Human Subjects and Federal Funding

Defendant states, "Plaintiffs do not and cannot allege that the Vaccination Program consisted of 'research involving human subjects' or that Governor Inslee has expended 'federal

---

[30] Doc 8-3, p. 6.
[31] 21 U.S.C. §360bbb-3(l)

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

funds' as required to implicate 45 C.F.R § 46.122." Regarding human subjects, see *supra*, Section B.

As for federal funding, it is not that Gov. Inslee expended federal funds, but rather that the federal government expended federal funds. Plaintiffs specifically alleged:

> The Federal Government is the sole sponsor of all COVID-19 EUA drugs, biologics, and devices, paying for 100% of their costs. Therefore, Washington State is acting on behalf of the sponsor when establishing mandatory participation in the government's property.[32]

Moreover, Plaintiffs refer to 46 CFR 46.122 in seven places in the Amended Complaint. See footnotes 11, 18, 22, paragraph 215, 216, 228, and 232.

In addressing the Belmont Report, Defendant again incorrectly misrepresents Plaintiff's allegations when he says: "Plaintiffs have not and cannot allege that the vaccine mandate was for the purpose of research, that they participated in any study, or that they were subjected to an experiment without informed consent." In addition to Section B, *supra*, establishing "clinical investigation" and "experiment," Plaintiffs respond that while the CDC COVID-19 Vaccination Program was not created for the "purpose" of research, it nevertheless meets the definition of research as defined under 45 CFR § 46.102(1), which means activities "designed to develop or contribute to generalizable knowledge" of the product. Regardless of Defendant's definition of research, which he did not provide, "research" in the context of 45 CFR 46 means a systematic investigation. Recall that the Scope of Authorization (Doc 8-4) and Provider Agreement (Doc 8-

[32] Doc 8, Footnote 19.

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

1) require monitoring and reporting (research activities) because 21 U.S.C. §360bbb-3 requires it.[33] Since COVID-19 drug recipients are administered an investigational medical product and their private identifiable information is collected along with the details about their interaction with the product, and that information is monitored, studied, or analyzed for purposes of adding to the generalizable knowledge of the product, the activity meets the definition of "research," thus requiring 45 CFR 46 compliance when the federal government is involved.

45 CFR Part 46 is enforceable under § 1983 because it is not a typical regulatory framework established by a federal agency. Given the complexity of biomedical research ethics, Congress requested the HHS Secretary to promulgate regulations on its behalf in 1974[34] for the protection of human subjects involved in federally funded research activities. In 1981, HHS established the Federal Wide Assurance program, ensuring compliance with the regulation and the Belmont Report, of which every (1) federal agency and department, (2) U.S. State, (3) U.S. County, (4) U.S. Territory, (5) most universities, (6) medical facilities, and (7) and tens of thousands of other entities have voluntarily agreed to comply with. No investigational new drug funded by the federal government or associated activities under its authority can escape the requirements of 45 CFR Part 46 and the Belmont Report when involving humans in those products or activities. 45 CFR Part 46 exists exclusively for the benefit of Plaintiffs by establishing duties upon Persons involved in its requirements.

---

[33] 21 U.S.C. §360bbb-3(e)(1)(A)(iii, iv), 21 U.S.C. §360bbb-3(e)(1)(e)(B)(iii)
[34] National Research Act, Public Law 93-348

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

As an example, 45 CFR 46.116(a)(2) states, "Before involving a human subject in research covered by this policy, an investigator shall obtain the legally effective informed consent of the subject or the subject's legally authorized representative." Therefore, the duty to obtain means the individual has the right to give their legally effective informed consent. The entire framework of the section of law is built around the premise of the duties of the sponsor and the rights of the potential recipient.

Defendant asserts the Belmont Report is not applicable because the Program is not considered research. As previously discussed, the CDC COVID-19 Vaccination Program was under research conditions as established under the product's Scope of Authorization, 21 U.S.C. §360bbb-3, and the Provider Agreement. Research is not narrowoly defined to only mean a clinical trial for the purpose of obtaining a marketing license from the FDA.

O. ICCPR Treaty

Defendant asserts, "The ICCPR applies to 'medical or scientific experimentation.' FAC ¶ 198. Plaintiffs, again, have not and cannot allege any such experimentation." Plaintiffs clearly alleged that an "experiment is any use of a drug except for the use of a marketed drug in the course of medical practice" and that "no FDA-licensed COVID-19 vaccine has been introduced into commerce for general commercial marketing."[35],[36]

---

[35] Doc 8, ¶ 33, Footnote 6.
[36] Doc 8, ¶ 27.

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

P. Unconstitutional Conditions Doctrine

Defendant's contention that the Proclamation did not establish an Unconstitutional Condition is incorrect.[37] When Gov. Inslee demanded that Plaintiffs inject an EUA/PREP Act drug into their bodies as a condition of employment in a profession licensed by the State, i.e., healthcare, he conditioned the enjoyment of that State privilege upon the forfeiture of the Constitutional rights of due process, equal protection, and bodily autonomy. As previously discussed, the express language of the PREP Act and the Supremacy Clause preempted Defendant from issuing any law interfering with the statute's authority.

Q. Due Process

Defendant's claim that "Plaintiffs fail to allege the elements of either a substantive or procedural due process claim" is incorrect.[38] Also incorrect is Defendant's assertion that "[t]he only purported interest Plaintiffs alleges is the 'right[] to refuse' the COVID vaccine."[39] Plaintiffs have NEVER argued that this case involved a "COVID vaccine." Plaintiffs have clearly differentiated between a "vaccine" and an EUA/PREP Act investigational drug. So, when Defendant goes back 118 years to cite the *Jacobson* case, he fails to understand that *Jacobson* involved an approved vaccine, not an EUA/PREP Act drug because neither the FDA, the EUA statute, nor the PREP Act existed in 1905. They do exist now, though, and all of their terms must

---

[37] Doc 18, p. 14
[38] Doc 18, p.16
[39] *Id.*

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

be given effect under the rules of statutory construction. Ironically, *Jacobson* addressed that very issue:

> "'All laws,' this court has said, 'should receive a sensible construction. General terms should be so limited in their application as not to lead to injustice, oppression, or an absurd consequence." *Jacobson v. Commonwealth of Massachusetts*, 197 U.S. 11, 25 S.Ct. 358, 49 L.Ed. 643, 3 Ann.Cas. 765 (1905)

Additionally, *Jacobson* did not issue a blanket pronouncement that all medical mandates by the government are Constitutional. Instead, to determine whether the mandate was proper, the *Jacobson* Court focused on whether the mandate was "arbitrary or oppressive." When Mr. Jacobson refused an approved vaccine, he was fined $5 (roughly $175 today). That does not seem arbitrary or oppressive. In the case at bar, however, Defendant destroyed Plaintiffs' careers, seniority, earnings, benefits, and work relationships, which is certainly a violation of Jacobson's prohibition on "arbitrary and oppressive" mandates.

Regarding substantive due process, Defendant improperly directs this Court to cases involving "vaccine mandates," but cannot cite to any controlling authority addressing mandatory injections of EUA drugs. Instead of citing *Jacobson*, it is more appropriate to cite to another admittedly uncontrolling case but one that is closest to being on point with the case at bar. *Doe v. Rumsfeld*, 297 F. Supp 2d 119 (DC 2003) and 341 F. Supp 2d 1 (DC 2004), is a DC Circuit case addressing a mandate that military personnel be vaccinated with the anthrax vaccine, which was an EUA investigational drug at the time. The court held that persons under DoD authority cannot be forced to take an investigational drug as a condition of their employment. That court held:

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

> The Court is persuaded that the right to bodily integrity and the importance of complying with legal requirements that may potentially be inconvenient or burdensome, are among the highest public policy concerns one could articulate.

Plaintiffs have repeatedly alleged their right to be free from an unwanted injection of an EUA/PREP Act investigational drug into their bodies and thus have alleged a right to bodily autonomy and integrity, which is a fundamental right that requires the application of the strict scrutiny standard. In the case at bar, Defendant has presented no argument, evidence, or authority for mandating that healthcare workers in Washington inject an EUA investigational drug into their bodies as a condition of continued licensure and employment in the healthcare industry, and thus Plaintiffs' due process claims must be allowed to move forward.

Defendant's Proclamation violated Plaintiffs' substantive due process rights when (1) establishing a law voiding Plaintiffs' option to refuse under the federal EUA statute by establishing penalties when exercising that right, (2) denying Plaintiffs' complete employment in their chosen profession, (3) requiring Plaintiffs to seek an exemption as the means to enjoy the federal right to refuse, (4) requiring Plaintiffs to prospectively surrender their substantive due process rights under threat of penalty to seek judicial relief should they incur injury from the drug or its administration due to the drug being under PREP Act immunity as the means to enjoy working in the healthcare industry.

Defendant violated Plaintiffs' procedural due process rights because he did not establish a date, time, or place for Plaintiffs to air their complaint before an impartial committee reviewing the complaint under Plaintiffs' authority to refuse with respect to the EUA/PREP Act statutes.

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

Defendant could not prove Plaintiffs did not have lawful authority to refuse the administration of an IND under the statutes, and it is for that reason why Defendant concealed the right to refuse language in his Proclamation and, through the filing of this complaint, Defendant continues to ignore Plaintiffs' federally secured right to refuse the EUA/PREP Act products.

Therefore, when Defendant issued a Proclamation having a compliance date requiring the use of EUA, PREP Act, and federally owned COVID-19 drugs as a condition to avoid the punishment[40] of losing the right to enjoy the government privilege of employment in the private sector, then the Proclamation, as applied, violated the substantive and procedural due process rights of Plaintiffs for reasons discussed above.

Defendant's Proclamation, as applied, was arbitrary, capricious, and unlawful. First, Defendant had no authority to require Plaintiffs to inject the EUA drug into their body. Second, Defendant had no authority to require someone else to inject an EUA drug into the body of Plaintiffs against their will. Third, Defendant agreed to act on behalf of the federal government when distributing its property under the conditions imposed by Congress and the HHS Secretary, which he violated when imposing contradictory conditions. Fourth, violating federal law, federal contracts, and Plaintiffs' Constitutional protections can never be considered a legitimate interest of the State.

---

[40] The U.S. Supreme Court held that "the Fourteenth Amendment requires the States to respect the freedom from excessive fines enshrined in the Eighth Amendment" *Timbs v. Indiana*, 139 S.Ct. 682, 203 L.Ed.2d 11 (2019). Forfeiture of one's career is punishment, not a civil fine, and comes under the purview of the Eighth Amendment of the federal Constitution.

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

R. Equal Protection

Defendant's assertion that his Proclamation, as applied, did not violate Plaintiffs' Fourteenth Amendment equal protection rights fails. 21 U.S.C. §360bbb-3(e)(1)(A)(ii)(III) is unambiguous in its requirement that "individuals to whom the product is administered are informed" — "of the option to accept or refuse administration of the product." Defendant apparently believes that only punishing one class of persons exercising their federally secured right (those who refuse) and not persons choosing the federally secured right to refuse is not a violation of the Fourteenth Amendment's equal protection doctrine, but instead of coming forward with authority for that position, he only attempts to misdirect the court by referencing statutes, case law, and other legal references that are inapplicable since they address licensed drugs, not EUA/PREP Act drugs.

Therefore, when Defendant issued a Proclamation having a compliance date requiring the use of EUA, PREP Act, and federally owned COVID-19 drugs as a condition to continue employment, then the Proclamation, as applied, required Plaintiffs to surrender their (1) substantive due process rights of bodily autonomy and integrity and to their statutory interest in the option to refuse, (2) right to equal protection of laws, (3) right to refuse participation in a federally funded research activity, (4) private health information, (5) private identifiable information, (6) right to give legally effective informed consent under the PREP Act, all of which violate the Fourteenth Amendment and violate the unconstitutional conditions doctrine.

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

S. Spending Clause

Defendant's claim that the Spending Clause Doctrine does not apply is incorrect.[41] Defendant was acting on behalf of the federal government to distribute its fully funded property and also received federal grants for that purpose. Moreover, private parties the State authorized to participate in the CDC COVID-19 Vaccination Program invoiced the federal government for each injection. The private parties were involved in the joint action of administering the federal government's property with the State. Therefore, Defendant was intimately involved in the distribution of the federally funded property owing duties to Plaintiffs having rights conferring language under the COVID-19 spending legislation.

Although mainly applicable to the military, 10 U.S.C. § 980 is applicable to the case at bar despite Defendant's claim otherwise. The DoD procured funding for the development of the COVID-19 medical countermeasure, purchased all COVID-19 drugs relied upon by Defendant for compliance with his Proclamation, and Defendant's Proclamation applied to persons under DoD authority. Moreover, the duty to obtain informed consent means Plaintiffs had the right to give it. Only through discovery will Plaintiffs fully understand the full involvement of DoD funding in the State's administration of the federal property, but for now, Plaintiffs' factual allegations must be accepted as true.

---

[41] Doc 18, p. 21.

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

T. State Law Claims

Defendant's assertion that "Plaintiffs State Law Claims Fail as a Matter of Law" (Doc 18, p. 22) is incorrect for reasons previously discussed. Plaintiff attached the Provider Agreement as an exhibit, which Defendant was legally bound to enforce on behalf of the federal government. Plaintiffs specifically referenced violations of employment torts.[42] Defendant was not Plaintiffs' employer but instituted a state-authorized policy directly impacting their employment. Defendant cannot allege that violating federal law or the Plaintiffs' constitutional rights is not a violation of referenced state law demonstrating outrageous conduct. Defendant requiring Plaintiffs to surrender their private health information and private identifiable information to unknown persons involved in the CDC COVID-19 Vaccination Program has everything to do with Defendant's Proclamation. Plaintiffs' action implicates Defendant because he willfully participated in the CDC COVID-19 Vaccination Program, requiring him to comply with 21 U.S.C. §360bbb-3, the Scope of Authorization for each EUA.

U. Qualified Immunity

Defendant's assertion he is entitled to qualified immunity is incorrect.

"The threshold inquiry a court must undertake in a qualified immunity analysis is whether plaintiff's allegations, if true, establish a constitutional violation."[43] The Supreme Court's opinion

---

[42] Doc 8, Count Seven and ¶ 249.
[43] *Hope v. Pelzer*, 536 U.S. 730, 736 (2002)

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

in *United States* v. *Lanier,* 520 U.S. 259, an 18 U.S.C. §242[44] case, makes clear that officials can be on notice that their conduct violates established law even in novel factual situations. Indeed, the Supreme Court expressly rejected a requirement that previous cases be "fundamentally similar"[45] when it stated:

> [G]eneral statements of the law are not inherently incapable of giving fair and clear warning, and in other instances a general constitutional rule already identified in the decisional law may apply with obvious clarity to the specific conduct in question, even though "the very action in question has [not] previously been held unlawful," *Anderson [v. Creighton*, 483 U.S. 635 (1987)] at 640.[46]

The *Lanier* Court also stated:

> [T]he object of the "clearly established" immunity standard is not different from that of "fair warning" as it relates to law "made specific" for the purpose of validly applying §242. The fact that one has a civil and the other a criminal law role is of no significance; both serve the same objective, and in effect the qualified immunity test is simply the adaptation of the fair warning standard to give officials (and, ultimately, governments) the same protection from civil liability and its consequences that individuals have traditionally possessed in the face of vague criminal statutes. To require something clearer than "clearly established" would, then, call for something beyond "fair warning."[47]

---

[44] 18 U.S.C. § 242 is entitled, Deprivation of Rights Under Color of Law and is located in Chapter 13 – Civil Rights.
[45] *Hope v. Pelzer*, 536 U.S. 730, 731 (2002)
[46] *United States* v. *Lanier,* 520 U.S. 259, 270
[47] *Id*., at 270-271.

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

The following precedent clearly established that a person cannot be deprived of their interest in liberty and property (e.g., state-issued license[48], government benefit, etc.) without due process:[49]

> The hallmark of property, the Court has emphasized, is an individual entitlement grounded in state law, which cannot be removed except "for cause." [Citations omitted]. Once that characteristic is found, the types of interests protected as "property" are varied and, as often as not, intangible, relating "to the whole domain of social and economic fact." [Citations omitted] *See, e.g., Barry v. Barchi,* 443 U. S. 55 (1979) (horse trainer's license protected); *Memphis Light, Gas & Water Div. v. Craft,* 436 U. S. 1, 436 U. S. 11-12 (1978), (utility service); *Mathews v. Eldridge,* 424 U. S. 319 (1976) (disability benefits); *Goss v. Lopez,* 419 U. S. 565, 419 U. S. 573-574 (1975), (high school education); *Connell v. Higginbotham,* 403 U. S. 207 (1971) (government employment); *Bell v. Burson,* 402 U. S. 535 (1971) (driver's license); *Goldberg v. Kelly,* 397 U. S. 254 (1970) (welfare benefits)."[50]

Therefore, existing precedent clearly established that:

> (1) investigational drugs cannot be accessed outside of the conditions established by Congress and the FDA, [51] and "exemptions from premarketing approval procedures are available for drugs intended solely for investigative use"[52] but only under lawfully prescribed conditions,
>
> (2) the option to accept or refuse was written by Congress in unambiguous language that must be treated equally[53],

---

[48] "A permission, accorded by a competent authority, conferring the right to do some act which without such authorization would be illegal, or would be a trespass or a tort." Black's Law Dictionary 2nd Ed.
[49] *Mullane v. Central Hanover Bank & Trust Co*., 339 U.S. 306 (1950)
[50] *Logan v. Zimmerman Brush Co*., 455 U.S. 422 (1982)
[51] *Abigail Alliance v. Eschenbach*, 495 F.3d 695 (D.C. Cir. 2007)
[52] *United States v. Rutherford*, 442 U.S. 544 (1979)
[53] 21 U.S.C. §360bbb-3(e)(1)(A)(ii)(III) is "fair and clear warning" to Defendant.

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

(3) the right to exercise a legal right without consequence was an "entitlement grounded in state law,"[54]

(4) Defendant was bound to comply with the terms and conditions of the Provider Agreement he voluntarily participated with[55],

(5) 21 U.S.C. §360bbb-3(l) restricted the HHS Secretary and by extension all others from establishing compulsory conditions,

(6) "No State shall make or enforce any law which shall abridge the privileges or immunities of citizens of the United States; nor shall any State deprive any person of life, liberty, or property, without due process of law; nor deny to any person within its jurisdiction the equal protection of the laws,"[56]

(7) Defendant was preempted from establishing law conflicting with the PREP Act and products under 21 U.S.C. §360bbb-3[57] and establishing involuntary[58] participation requirements, and

(8) due process is required when interfering with a state privilege or a person's state-issued license[59] (i.e., medical facilities licensing rights),

(9) the State already provided Defendant with fair warning that it gave its assurance to the federal government that it would not compel participation in a federally funded investigational new drug under its FWA agreement,

(10) HHS provided public notice that no person can come under penalty for refusing administration of an EUA product,[60]

(11) Defendant could not cite a Constitution, federal statute, state statute, case law, agency administration notice, or any other lawful source of

---

[54] *Becker v. Community Health Systems*, 184 Wn.2d 252, 359 P.3d 746 (2015); *Rose v. Anderson Hay & Grain Co*., 184 Wn.2d 268, 358 P.3d 1159 (2015), and *Rickman v. Premera Blue Cross*, 184 Wn.2d 300, 358 P.3d 1153 (2015)
[55] Doc 8-1, Provider Agreement
[56] Fourteenth Amendment
[57] 42 USC § 247d-6d(b)(8)
[58] 42 USC § 247d-6e(c)
[59] *Logan v. Zimmerman Brush Co*., 455 U.S. 422 (1982)
[60] Federal Register/Vol. 70, No. 21/Wednesday, February 2, 2005/Notices 5455 IV Conditions of Authorization

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

> authority proving that his discretionary authority afforded him the right to compel use of the federally funded COVID-19 EUA drugs. All historical precedent demonstrates that no person can compel any other person to inject unlicensed drugs into their bodies as a condition to enjoy a privilege of the State.

Moreover, the Defendant admitted to this court that the EUA statute "requires the HHS Secretary to establish conditions for the administration of emergency use medications," showing that he knew he could not establish what Congress and the HHS Secretary prohibited. Defendant's actions were outrageous, immoral, unlawful, and well outside societal norms, leading to severe financial, emotional, and legal injuries. Defendant's claim that he is entitled to qualified immunity fails.

IV. ORAL ARGUMENT REQUESTED

Plaintiffs believe oral argument would be helpful and hereby request same.

V. CONCLUSION

For the reasons set forth above, Plaintiffs urge the court to deny Gov. Jay Inslee's Motion to Dismiss, in its entirety.

SCHEXNAYDRE LAW FIRM, LLC
2895 HWY 190, STE 212
MANDEVILLE, LA 70471
TELEPHONE: (985) 292-2020
FACSIMILE: (985) 235-1089

RESPECTFULLY SUBMITTED,

I certify that this motion contains 8,318 words, in compliance with the Local Civil Rules.

SCHEXNAYDRE LAW FIRM

BY: /s/ *David J. Schexnaydre*
DAVID J. SCHEXNAYDRE, T.A.
Louisiana Bar Roll #: 21073
2895 Highway 190 • Suite 212
Mandeville, Louisiana 70471
Telephone: (985) 292-2020
Fax: (985) 235-1089
Email: david@schexnaydre.com
Lead Counsel for Plaintiffs-*Pro Hac Vice*

And

/s/ Charice Holtsclaw
CHARICE HOLTSCLAW, ESQ.
WSBA# 53850
301 Prospect St.
Bellingham, WA 98225
Phone: (360) 639-3393/(816) 842-6700
Email: holtsclaw.law@gmail.com
Local Counsel for Plaintiffs